

WRITTEN ARGUMENTS

CIVIL SUIT NO. 612 OF 2025

ON BEHALF OF THE PLAINTIFF

1. Issue 1 (Validity of execution): The Agreement to Sell dated 05.10.2024 (Ex. P-1) stands admitted by the Defendant in paragraph 3 of his own Written Statement. The earnest money receipts (Ex. P-2) further corroborate execution of the Agreement and payment thereunder. The Defendant's subsequent, contradictory denial of execution in paragraph 9 of the Written Statement is an afterthought that cannot be permitted to displace his own clear admission.
2. Issue 2 (Time not of the essence): The Agreement contains no express clause declaring time to be of the essence. It is settled law, applicable to contracts for sale of immovable property, that time is ordinarily presumed not to be of the essence unless so stipulated in explicit terms or unless the Defendant, after the due date, called upon the Plaintiff by notice to perform within a further fixed period, which admittedly never happened.
3. Issue 3 (Readiness and willingness): The Plaintiff obtained a bank loan sanction (Ex. P-7) on 10.02.2025, nearly two months ahead of the due date of 05.04.2025, and has consistently asserted his willingness to complete the transaction, including through the legal notice dated 20.04.2025 (Ex. P-6). The Local Commissioner's Report confirms the property remains vacant and available for conveyance, negating any suggestion of change in circumstances.
4. Issue 4 (Entitlement to specific performance): Given the admitted Agreement, the absence of any valid time-essence stipulation and the Plaintiff's continuous readiness and willingness, a decree of specific performance under Section 10 of the Specific Relief Act, 1963 ought to follow as a matter of course.
5. Issue 5 (Alternative relief): Only in the improbable event specific performance is declined should the alternative of refund of earnest money with interest and damages arise; even then, the Defendant's own conduct in seeking to deal with the property with a third party disentitles him from retaining the earnest money.

ON BEHALF OF THE DEFENDANT

1. Issue 1 (Validity of execution): Without prejudice to the admission in paragraph 3 of the Written Statement, which was made in the context of pleading the time-essence defence, the Defendant's alternative case in paragraph 9 puts the Plaintiff to strict proof of due execution in the terms alleged, particularly as to the completeness of the earnest money recital.
2. Issue 2 (Time of the essence): The fixing of a definite date for payment of the substantial balance consideration, linked to simultaneous registration, demonstrates that time was intended by the parties to be essential to the bargain, notwithstanding the absence of a labelled clause to that effect.
3. Issue 3 (Readiness and willingness): The bank loan sanction, obtained shortly before the due date, does not by itself establish continuous readiness and willingness from the date of the Agreement, as required under Section 16(c) of the Specific Relief Act, 1963.
4. Issue 4 (Discretionary relief): Specific performance being a discretionary and equitable relief under Section 20 of the Specific Relief Act, 1963, the Plaintiff's delayed tender disentitles him to the same.
5. Issue 5 (Alternative relief): In the further alternative, only a bare refund of the earnest money, without interest, would be equitable given the Plaintiff's own default.

Filed on 10.04.2026 by both parties.